

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK**-----X
JAMES SARA,

Plaintiff,

- against -

THE CITY OF NEW YORK; THE NEW YORK CITY,
POLICE DEPARTMENT; P.O. CARMEN BENAVIDES
(SHIELD 09861); P.O. MICHAEL ALFANO (SHIELD
06172); P.O. JOSEPH CUERVO (SHIELD 27083),Defendant.
-----X

Index No.

Plaintiff's Address:
111 Marmora Road
Parsippany, NJ 07054Plaintiff designates NEW YORK
COUNTY as the place of trialThe basis of venue is:
Where the Tort Arose**SUMMONS****To the above named Defendant(s):**

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons to serve a notice of appearance on the Plaintiff's attorney within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: Queens, NY
February 1, 2014William Yeung, Esq.
Law Office of Yeung & Wang PLLC
Attorney(s) for Plaintiff
39-01 Main Street, Suite 509
Flushing, NY 11354
(718) 888-0090

TO:

CORPORATION COUNSEL OF THE CITY OF NEW YORK100 Church Street
New York, NY 10007**NEW YORK POLICE DEPARTMENT**1 Police Plaza
New York, NY 10007

P.O. CARMEN BENAVIDES (SHIELD 09861)

6th Precinct

233 W 10th St.

New York, NY 10014

P.O. MICHAEL ALFANO (SHIELD 06172)

6th Precinct

233 W 10th St.

New York, NY 10014

P.O. JOSEPH CUERVO (SHIELD 27083)

6th Precinct

233 W 10th St.

New York, NY 10014

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK**

-----X Index No:
JAMES SARA,

Plaintiff,

VERIFIED COMPLAINT

-- against --

THE CITY OF NEW YORK; THE NEW YORK CITY
POLICE DEPARTMENT; P.O. CARMEN BENAVIDES
(SHIELD 09861); P.O. MICHAEL ALFANO (SHIELD
06172); P.O. JOSEPH CUERVO (SHIELD 27083),

Defendants.

-----X

Plaintiff, by his attorney, LAW OFFICE OF YEUNG & WANG PLLC, complaining of the
defendants, respectfully sets forth and alleges as follows:

PARTIES

1. At all times relevant herein, Plaintiff JAMES SARA is a male college graduate with no
criminal record, a U.S. Citizen, and a resident of the Township of Parsippany-Troy Hills, in
Morris County in the State of New Jersey.

2. At all times relevant herein, Defendant, THE CITY OF NEW YORK ("CITY") was and is
still a municipal corporation organized and existing under and by virtue of the laws of the State
of New York.

3. At all times relevant herein, Defendant, THE CITY OF NEW YORK, maintains the New
York City Police Department, duly authorized public authorities and/or police departments,
authorized to perform all functions of a police department as per the applicable sections of the
New York State Criminal Procedure Law, acting under the direction and supervision of the
aforementioned municipal corporation, CITY.

4. At all times relevant herein, all New York City Police Department ("NYPD") officers

mentioned herein, including the the individually named defendants, P.O. CARMEN BENAVIDES (SHIELD 09861), P.O. MICHAEL ALFANO (SHIELD 06172), P.O. JOSEPH CUERVO (SHIELD 27083) were duly sworn police officers of said department and were acting under the supervision of said department and according to their official duties as the agents, servants, and employees of the Defendant CITY.

FACTS

5. Paragraphs 1-4 are incorporated by reference as fully set forth herein.
6. At approximately 2:05 AM on November 10, 2012, Plaintiff was walking with his friend Dennis Morais and some other friends near the intersection of Avenue of the Americas and West 3rd Street, County of New York, State of New York when he was approached by a man whom they had never met before, Thomas Scott.
7. Mr. Scott asked Plaintiff and his friends if they, in sum and substance, "needed anything," and produced a small baggie with a dark substance inside.
8. Plaintiff became uneasy with the interaction, and told Mr. Scott that he was not interested. Plaintiff and his friends then walked away.
9. At no point did Plaintiff or his friends make contact with Mr. Scott or any items that Mr. Scott was carrying on his person.
10. Immediately after this, Plaintiff was approached by a plainclothes officer (later identified, upon information and belief, to be Defendant P.O. Carmen Benavides).
11. Despite not identifying herself, Defendant P.O. Carmen Benavides told Plaintiff to freeze and produced a pair of handcuffs.
12. Despite having no probable cause, Defendant P.O. Carmen Benavides, along with two other plainclothes officers (later identified, upon information and belief, to be Defendant P.O.

Michael Alfano and Defendant P.O. Joseph Cuervo) accosted Plaintiff, separated Plaintiff from his friends, and placed Plaintiff under arrest with his arms tightly behind his back.

13. At no time on November 10, 2012, did defendants possess information that would lead a reasonable officer to believe probable cause existed to arrest plaintiff.

14. Defendant officers then searched Plaintiff against his will.

15. Defendant officers found no contraband on Plaintiff.

16. At no time on November 10, 2012, did Plaintiff possess any controlled substances or behave unlawfully in any way.

17. The seizure and search of Plaintiff was illegal because plaintiff had not committed a crime or violation and because the defendants did not have reasonable suspicion to believe that plaintiff had engaged in criminal activity.

18. Although plaintiff was compliant, when Plaintiff asked one of the officers, believed to be Defendant P.O. Michael Alfano, why he was being arrested, the officer believed to be P.O. Michael Alfano forcefully stuck his forearm into Plaintiff's back and slammed the Plaintiff up against a nearby subway station railing and said to Plaintiff: "shut the fuck up, you know what you did."

19. Plaintiff suffered pain and injury including wrist pains and bruising.

20. Despite having no contraband found on him, Plaintiff was placed into a police van.

21. Plaintiff was driven around in the police van for a considerable amount of time, despite not being informed what he was being charged with, nor read his Miranda rights, and transported to the 6th precinct in New York County.

22. Upon arriving at the 6th Precinct, Plaintiff was fingerprinted, photographed and placed in a tightly cramped holding cell with several other detainees who were up all night sharing stories

with each other, depriving Plaintiff of any opportunity to get any rest.

23. On at least two occasions during Plaintiff's time at the 6th Precinct, Plaintiff was taken out by officers for question, with two such occasions involving Defendant P.O. Michael Cuervo.

24. At no time during Plaintiff's detention at the 6th Precinct was Plaintiff informed of his Miranda rights.

25. After approximately 12 hours, Plaintiff was denied a Desk Appearance Ticket and taken to Central Booking located at 100 Centre Street, County of New York.

26. In connection with plaintiff's arrest, defendants filled out false and/or misleading police reports and forwarded them to prosecutors at the New York County District Attorney's Office.

27. Thereafter, defendants repeatedly gave false and misleading information regarding the facts and circumstances of plaintiff's arrest. Specifically, defendants falsely state that plaintiff was observed receiving a small object from Mr. Scott, and that the Plaintiff was observed dropping one bag of crack/cocaine on the ground.

28. Plaintiff remained in Central Booking for approximately 11 hours until he was finally brought before a Criminal Court judge for arraignment on the charges of Criminal Possession of a Controlled Substance in the Seventh Degree.

29. The false charges were adjourned in contemplation of dismissal ("ACD") during the arraignment on November 11, 2012.

30. During his arraignment, plaintiff was led to believe that an ACD was the equivalent of a dismissal and that the criminal charges would be "thrown out."

31. On November 21, 2012, Assistant District Attorney Christopher Lin of the New York District Attorney's Office, who was assigned to the prosecution of Mr. Scott's criminal case stemming from this same incident, informed Plaintiff's attorney, William Yeung, that the lab test

on the alleged crack/cocaine recovered at the scene turned up negative for any controlled substances.

32. Because of this error at the hands of the police and/or the District Attorney's Office, on or about November 25, 2012, upon motion of the District Attorney's Office, the Court recalled Mr. Sara's case, the Court withdrew the ACD disposition, and the Court dismissed the case outright in furtherance of justice.

33. Plaintiff suffered damage as a result of defendants' actions. Plaintiff was incarcerated for approximately 23 hours and suffered pain, suffering, physical injury, a loss of freedom, emotional distress, mental anguish, shame, humiliation, indignity, damage to reputation, and deprivation of his constitutional rights. Plaintiff did not receive medical or mental health treatment as a result of Defendants' conduct.

FEDERAL CLAIMS

FIRST CLAIM FOR RELIEF:

DEPRIVATION OF FEDERAL RIGHTS UNDER 42 U.S.C. § 1983

34. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered "1" through "33" with the same force and effect as if fully set forth herein.

35. All of the aforementioned acts of defendants, their agents, servants and employees, were carried out under the color of state law.

36. All of the aforementioned acts deprived plaintiff of the rights, privileges and immunities guaranteed to citizens of the United States by the Fourth and Fourteenth Amendments to the Constitution of the United States of America, and in violation of 42 U.S.C. § 1983.

37. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers with all the actual and/or apparent authority attendant thereto.

38. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers and corrections officers, pursuant to the customs, usages, practices, procedures, and the rules of the City of New York, the New York City Police Department and the New York City Department of Corrections, all under the supervision of ranking officers of said department.

39. Defendants, collectively and individually, while acting under color of state law, engaged in conduct which constituted a custom, usage, practice, procedure or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.

SECOND CLAIM FOR RELIEF:

FALSE ARREST UNDER 42 U.S.C. § 1983

40. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered "1" through "39" with the same force and effect as if fully set forth herein.

41. As a result of the aforesaid conduct by defendants, plaintiff was subjected to illegal, improper and false arrest by the defendants, taken into custody, and caused to be falsely imprisoned, detained, and confined, without any probable cause, privilege or consent.

42. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, he was put in fear for his safety, and he was humiliated and subjected to handcuffing and other physical restraints, without probable cause.

THIRD CLAIM FOR RELIEF:

MALICIOUS PROSECUTION UNDER 42 U.S.C. § 1983

43. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered "1" through "42" with the same force and effect as if fully set forth herein.

44. Defendants misrepresented and falsified evidence before the New York County District

Attorney.

45. Defendants did not make a complete and full statement of facts to the District Attorney.

46. Defendants withheld exculpatory evidence from the District Attorney.

47. Defendants were directly and actively involved in the initiation of criminal proceedings against plaintiff.

48. Defendants lacked probable cause to initiate criminal proceedings against plaintiff.

49. Defendants acted with malice in initiating criminal proceedings against plaintiff.

50. Defendants were directly and actively involved in the continuation of criminal proceedings against plaintiff.

51. Defendants lacked probable cause to continue criminal proceedings against plaintiff.

52. Defendants acted with malice in continuing criminal proceedings against plaintiff.

53. Defendants misrepresented and falsified evidence throughout all phases of the criminal proceedings.

54. The case against the Plaintiff was dismissed in its entirety on November 25, 2012.

55. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, he was put in fear for his safety, and he was humiliated and subjected to handcuffing and other physical restraints without probable cause.

STATE CLAIMS

56. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered "1" through "55" with the same force and effect as if fully set forth herein.

57. On or about February 7, 2013, and within ninety (90) days after the claim herein accrued, the plaintiffs duly served upon, presented to and filed with defendant THE CITY OF NEW YORK, a Notice of Claim setting forth all facts and information required under the General

Municipal Law § 50 (e).

58. Defendant THE CITY OF NEW YORK has wholly neglected or refused to make an adjustment or payment thereof and more than thirty (30) days have elapsed since the presentation of such claim as aforesaid.

59. A 50-H hearing was held on June 5, 2013.

60. This action has been commenced within one year and ninety days after the happening of the event upon which the claims are based.

61. The Plaintiff has duly complied with all conditions precedent to the commencement of this action.

62. This action falls within one or more of the exceptions as outlined in C.P.L.R. § 1602.

FIRST CLAIM FOR RELIEF:

FALSE ARREST

63. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered "1" through "62" with the same force and effect as if fully set forth herein.

64. As a result of the aforesaid conduct by defendants, plaintiff was subjected to illegal, improper and false arrest by the defendants, taken into custody, and caused to be falsely imprisoned, detained, and confined, without any probable cause, privilege or consent.

65. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, he was put in fear for his safety, and he was humiliated and subjected to handcuffing and other physical restraints, without probable cause.

SECOND CLAIM FOR RELIEF:

MALICIOUS PROSECUTION

66. Plaintiff repeats, reiterates and realleges each and every allegation contained in

paragraphs numbered “1” through “66” with the same force and effect as if fully set forth herein.

67. Defendants misrepresented and falsified evidence before the New York County District Attorney.

68. Defendants did not make a complete and full statement of facts to the District Attorney.

69. Defendants withheld exculpatory evidence from the District Attorney.

70. Defendants were directly and actively involved in the initiation of criminal proceedings against plaintiff.

71. Defendants lacked probable cause to initiate criminal proceedings against plaintiff.

72. Defendants acted with malice in initiating criminal proceedings against plaintiff.

73. Defendants were directly and actively involved in the continuation of criminal proceedings against plaintiff.

74. Defendants lacked probable cause to continue criminal proceedings against plaintiff.

75. Defendants acted with malice in continuing criminal proceedings against plaintiff.

76. Defendants misrepresented and falsified evidence throughout all phases of the criminal proceedings.

77. The case against the Plaintiff was dismissed in its entirety on November 25, 2012.

78. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, he was put in fear for his safety, and he was humiliated and subjected to handcuffing and other physical restraints without probable cause.

THIRD CLAIM FOR RELIEF:

FALSE IMPRISONMENT

79. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered “1” through “78” with the same force and effect as if fully set forth herein.

80. The officers who searched and arrested the Plaintiff, as described in paragraphs 5-32, intended to confine him.

81. The Plaintiff was conscious of his confinement and did not consent to it.

82. The confinement was not privileged or authorized by any warrant, order, or other legal right.

FOURTH CLAIM FOR RELIEF:

ABUSE OF PROCESS

83. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered "1" through "82" with the same force and effect as if fully set forth herein.

84. In arresting Plaintiff as described in paragraphs 5-32, the arresting NYPD officers were motivated by an ulterior purpose to do harm, without justification or economic or social excuse.

85. In arresting the Plaintiff as described in paragraphs 5-32, the arresting NYPD officers sought either a detriment to Plaintiff or a collateral advantage to themselves that is outside of the legitimate ends of making an arrest.

86. As a result of defendants' abuse of process, Plaintiff sustained multiple injuries, including loss of liberty, emotional distress, humiliation, loss of enjoyment of life, and fear and intimidation for his safety.

FIFTH CLAIM FOR RELIEF:

NEGLIGENCE

87. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered "1" through "86" with the same force and effect as if fully set forth herein.

88. At all times hereinafter mentioned, the aforesaid false arrest, malicious prosecution, false imprisonment, and abuse of process, were caused solely by the negligence of Defendant CITY,

its agents, servants and/or employees.

89. As a result of the negligence by Defendant CITY, the Plaintiff sustained multiple injuries, including loss of liberty, emotional distress, humiliation, loss of enjoyment of life, and fear and intimidation for his safety.

SIXTH CLAIM FOR RELIEF:

NEGLIGENT SUPERVISION

90. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered “1” through “89” with the same force and effect as if fully set forth herein.

91. Defendant CITY has grossly failed to train and properly supervise its police officers regarding the law of arrest, search and seizure, particularly when its police officers lack a valid arrest or probable cause to search and where an individual, such as the Plaintiff in the instant case, has not committed a crime and has not resisted arrest.

92. Defendant CITY was negligent by failing to implement a policy within the NYPD instructing police officers not to arrest individuals such as Plaintiff unless there is a probable cause or a court authorized warrant.

93. The foregoing acts, omissions and systemic failures are customs and policies of Defendant CITY which caused its police officers to falsely arrest, maliciously prosecute, illegally search and seize, and assault and batter Plaintiff.

SEVENTH CLAIM FOR RELIEF:

NEGLIGENT HIRING

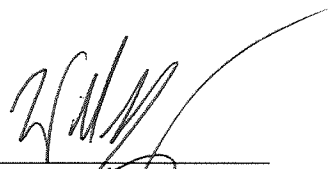
94. Paragraphs 1-93 are incorporated by reference as though fully set forth herein.

95. Defendant CITY was negligent because prior to and at the time of the acts complained herein, due to the prior history of the police officers mentioned herein, the CITY knew or should

have known the bad disposition of said police officers or had knowledge of facts that would have put a reasonably prudent employer on inquiry concerning their bad disposition and that the fact that these officers were not suitable to be hired and employed by the CITY and that due to their lack of training, these officers should have had adequate supervision so that they would not arrest innocent individuals.

WHEREFORE, Plaintiff JAMES SARA demands judgment against the Defendant as follows:

- (a) an order awarding compensatory damages in an amount to be determined at trial;
- (b) an order awarding punitive damages in an amount to be determined at trial;
- (c) reasonable attorneys' fees and costs under 42 U.S.C. § 1988; and
- (d) directing such other and further relief as the Court may deem just and proper, together with attorneys' fees, interest, costs and disbursements of this action.



William Yeung, Esq.
Law Office of Yeung & Wang PLLC
Attorney(s) for Plaintiff
39-01 Main Street, Suite 509
Flushing, NY 11354
(718) 888-0090

TO:
CORPORATION COUNSEL OF THE CITY OF NEW YORK
100 Church Street
New York, NY 10007

NEW YORK POLICE DEPARTMENT
1 Police Plaza
New York, NY 10007

P.O. CARMEN BENAVIDES (SHIELD 09861)

6th Precinct
233 W 10th St.
New York, NY 10014

P.O. MICHAEL ALFANO (SHIELD 06172)

6th Precinct
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P.O. JOSEPH CUERVO (SHIELD 27083)

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New York, NY 10014

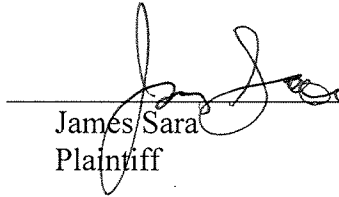
VERIFICATION

STATE OF NEW YORK, COUNTY OF QUEENS, ss.

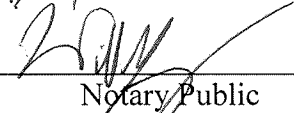
The undersigned, the Plaintiff in this action, being duly sworn, deposes and says that the deponent has read the complaint, and the contents of the complaint are true to the deponent's own knowledge, except as to those matters which are alleged upon information and belief, and as to such matters the deponent believes them to be true.

The grounds for deponent's belief as to all matters not stated upon his knowledge are investigations which his attorney has made or has caused to be made concerning the subject matter of this action, and statements of parties or witnesses herein.

Dated: February 1, 2014


James Sara
Plaintiff

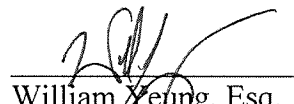
Subscribed and sworn to before me
on 2/1/14


Notary Public

My commission expires on

William Yeung
Notary Public, State of New York
Qualified in Queens County
No. 02YE6223494
My Commission Expires On 06/14/20 14

Attorney signature pursuant to Sec. 130-1.1-a of the
Rules of the Chief Administrator (22 NYCRR)


William Yeung, Esq.
Law Office of Yeung & Wang PLLC
Attorney(s) for Plaintiff
39-01 Main Street, Suite 509
Flushing, NY 11354
(718) 888-0090

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Defendants.

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SUMMONS WITH VERIFIED COMPLAINT

**Plaintiff's Attorney:
William Yeung, Esq.
Law Office of Yeung & Wang PLLC
39-01 Main Street, Suite 509
Flushing, NY 11354
(718) 888-0090**